



File No.: EXP202202184

RESOLUTION No.: R/00537/2023

Considering the complaint filed with this Agency by A.A.A. (hereinafter the claimant) against BANCO CETELEM, S.A. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The claimant exercised their right of access against the respondent with NIF A78650348, and their request, as stated by the claimant, did not receive the legally established response.

The claimant states that they requested the right of access from the respondent after learning that they were being claimed for a debt inherited from their deceased father. The respondent entity replies that there is no contract in their name.

This Agency, after receiving a response from the respondent, considered the right to have been attended to, and the complaint was declared inadmissible.

“...Once the reasons presented by BANCO CETELEM, S.A., which are in the file, have been analyzed, this Agency considers that the requested right has been attended to. For this reason, pursuant to the provisions of Article 65.4 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agrees not to admit the complaint for processing. This is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint...”

The claimant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised, and, disagreeing with the inadmissibility of their complaint, submits a motion for reconsideration, which is resolved favorably and leads to the current complaint, the conclusion of which is as follows:

“...On May 20, 2022, the appellant submitted a document at the Post Office in Alcorcón (Madrid), which was registered with the AEPD on May 25, 2022, by which they filed a motion for reconsideration against the resolution issued in file EXP202202184, in which they express their disagreement with the contested resolution, arguing that their access request has not been attended to since the respondent has provided access to the data of their deceased father when they requested access to their personal data provided to the respondent in relation to a contract formalized by their deceased father that originated a debt that...”

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she is claimed against (...) In the present case, from the documentation in the file, it has been verified that the right of access exercised has not been attended to by the claimed party due to an error in the identification of the data to which access was requested, which pertains to the claiming party and not to her deceased father, to whom access was erroneously granted...”

SECOND: The claimed entity was granted a hearing process, so that within ten working days it could present the allegations it deemed appropriate. This entity states that after resolving the initial errors due to confusion, it has attended to the right.

Upon examining the allegations presented by the claimed party, they are forwarded to the claiming party, so that, within fifteen working days, it can formulate any allegations it considers appropriate.

The claiming party insists that the right has not been attended to, that they are being informed about data related to previous contracts that have already been canceled, but that they are not being sent the

data they have regarding the contract signed by her deceased father, which they requested to take responsibility for.

THIRD: After the allegations of the claiming party, a new transfer is made to the claimed party, which provides a letter dated June 1, 2023, where they certify having attended to the right regarding the contract referred to by the claiming party.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of Article 56 in relation to section 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the obligations that pertain to them, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis and response to this Agency.

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within a month and shall prove that it has provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

Such an admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR

and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such request.

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request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the responsible party. The communication directed to the interested party in relation to their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood to be granted if the responsible party provides remote access to the data, considering the request to be attended to (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

In the case analyzed here, the complaining party exercised their right of access against the complained party and did not receive a satisfactory response.

In principle, this Agency dismisses their complaint to later address it after the appeal filed by the complainant revealed that there was confusion, as the data of the deceased father was provided instead of those of the complainant/requester.

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The complainant requests access to their data regarding a contract signed by their deceased father, for which they were being pursued for debt. In addition to the origin of the data, they seek information on its use, retention, to whom it has been transferred, etc.

The complained party claims to have addressed the right by sending the data they have regarding the complainant concerning the contract, as evidenced in the letter sent to the complainant dated June 1, 2023. In this letter, the complained party addresses the right of access as outlined in the aforementioned regulations.

Therefore, in the case analyzed here, with the documentation present in the procedure, as derived from the allegations made and the documentation provided by the complained party in the process of transferring the complaint, it is verified that the right of access has been attended to in an untimely manner.

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the complaint filed by A.A.A. against the entity BANCO CETELEM, S.A. However, it is not appropriate to issue a new certification by said entity, as the response was issued untimely, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to BANCO CETELEM, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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